

Colonial Mobile Manor
900 9th Ave. East (U.S. 301 North)
Palmetto, Florida 34221 Phone: (941) 722-3191
Lease Agreement

This lease is made this 13th day of August, 2020 between Colonial Mobile Manor, Limited, hereinafter called "Landlord," and Gregory Burkett and Tiffany Martin, hereinafter called "Resident." The Landlord leases to the Resident and the Resident leases from the Landlord LOT# 214 in Colonial Mobile Manor in Palmetto, Florida for a term to commence September 1, 2021 and terminate December 31, annually, and thereafter on a month-to-month basis, commencing on the first day of each month. Regardless of the length of residency, resident understands that rent increases may be put into effect with proper notice as is required by the Mobile Home Tenant Act ("the Act"). Notice of the increase shall be given in accordance with the Act prior to the effective date of the said increase.

The amount of monthly rent initially charged for the manufactured home space is the sum of \$ 599.00 due on the first day of each month. Occupancy is based on one or two residents per lot. Each additional resident is charged \$ 900.00 per year, payable \$ 75.00 per month. Rent received after the date due is subject to an additional late rent fee of \$ 45.00.

It is mutually agreed by the parties hereto, their heirs, executors, administrators, and successors that this rental is made and tenancy accepted upon the Rules and Regulations of Colonial Mobile Manor, Limited dated January 1, 2011, a copy of which the Resident acknowledges having received and read, and Resident agrees to abide by. Violation of any of the Rules or conditions of this lease by the Resident shall constitute a breach of the agreement.

In the case of non-renewal of this lease, the terms of this lease shall continue unless a new lease is entered into between the Landlord and the Resident or the tenancy is terminated.

This mobile home park is zoned "mobile home" under the zoning authority of Manatee County and the City of Palmetto, with no plans for changing the use of the land.

The Landlord and the Resident have respectfully signed this lease as of the day and year first written above.
Colonial Mobile Manor Limited

COLONIAL MANOR M.L.P.

By: Patty Burke

Patty Burke, Manager

Date: August 13, 2020

X Gregory Burkett

Gregory Burkett

X Tiffany Martin

Tiffany Martin

EXHIBIT

A

COLONIAL MANOR MOBILE HOME PARK

900 9TH AVENUE EAST
PALMETTO, FLORIDA 34221
PHONE (941)-722-3191

LOT#

214

I (WE) HEREBY ACKNOWLEDGE RECEIVING THE RULES AND
REGULATIONS OF COLONIAL MANOR MOBILE HOME PARK,
WHICH I (WE) AGREE TO ABIDE BY.

DATE

8/18/20

Tiffany Martin
[Signature]

Colonial Mobile Manor

900 9th Avenue East (US 301 North), Palmetto, Florida 34221

Telephone: (941) 722-3191

RULES & REGULATIONS - EFFECTIVE JANUARY 1, 2011

1. **LOT RENTAL** - Rent is due on the first day of each month. Rent received late and by the fifth of the month, or the following business day if the fifth falls on a Sunday, is subject to additional rent of \$35.00. Rent received late and after the tenth of the month is subject to additional rent of \$75.00. The charge for a returned check is \$40.00. Bounced rent checks will incur a late fee in addition to the bounced check fee of \$40.00 if not repaid within twenty-four (24) hours of notification.

Water, sewer and storm water charges are billed directly to the Home Owner. If payment of the water/sewer bill is not received by the date due, there will be a \$35.00 late charge per month.

2. **QUIET ENJOYMENT** - Any act of any resident or permitted guest of any resident which disturbs or endangers the life, health, safety, property, or peaceful enjoyment of the park or its residents is not permitted, and is grounds for eviction.

3. **OCCUPANCY** - Colonial Mobile Manor is an age 55+ park. All persons must be approved to reside in the Park. All residents and overnight invitees must be registered prior to occupancy. At least one resident must be 55 years of age or older. An approved person may have a member of his immediate family (spouse, parent, adult sibling, or child) approved to reside with him as long as the family member is over the age of 40 and is approved for residency. The family member, under the age of 55, may reside only for such period as the person over the age of 55 actually lives in his home. No one under the age of 40 may reside in any unit of the park under any circumstances. Maximum approved residency in a home is limited to three (3) persons.

4. **INVITEES** - Approved Residents must register (30) days per calendar year. After 30 days, an invitee must pay \$75.00 per invitee per month or part thereof and may not stay beyond an additional thirty (30) days. Children (under 18) must be accompanied by a resident when using park facilities, and may not use the pool table. Residents are responsible for the actions of their invitees. Nothing contained in these Rules and Regulations shall be construed as to authorize children to reside in the park.

5. **COMMERCIAL ACTIVITIES** - No commercial activities, including babysitting or child day care, are permitted at the park or on or in any lot or home.

6. **PETS** - Pets, except for small birds in a cage or fish in a tank, are not permitted in



the park at any time. Violation of this Rule may result in legal action including eviction. Feeding wild or stray animals is prohibited.

7. **LOT & HOME MAINTENANCE** - The Home Owner shall maintain the lot and the exterior of the home in a neat and clean manner and shall have the home pressure cleaned or painted as required by Management. Storage is not permitted on the patio, in the driveway, or on the lot. Home Owners shall maintain the trees, plants, shrubs, and lawn (mow, trim, edge, fertilize, etc.) on their lots. Summer lawn maintenance requires mowing once a week. Watering the lawn is allowed before 9:00 A.M. or after 5:00 P.M., or in accordance with any government watering regulation. Excessive watering causing water run-off into the street is prohibited. Planting or removal of trees and plants on the lot requires the Park Owner's approval. Should it become necessary, because of neglect, for the management to maintain the lawn, the cost to the Home Owner will be \$50.00 per mowing, trimming, and edging.

8. **CLUBHOUSE** - Smoking is not permitted in the clubhouse. The clubhouse is for the use of park residents and their guests who are accompanied by the resident. The clubhouse may not be used for commercial activities. All activities must be approved by the Park Management. Hours are from 8:00 A.M. - 9:00 P.M. daily and may be temporarily extended or shortened upon request and with approval by Park Management. All personal property in the clubhouse is owned by the park. Any alterations or changes to the personal property or to the clubhouse must be approved by the Park Owner. Residents using the clubhouse or personal property therein shall clean up immediately after their activities.

9. **SALE OR RENTAL OF HOME** - Notice of a pending home sale or rental must be provided to Management not less than fifteen (15) days prior to the date of sale or the effective date of commencement of the rental. Prospective residents must complete an application for residency and be approved by the Park Manager prior to residency. It is also the obligation of the Home Owner to provide prospective buyers/renters with a complete copy of these Rules and Regulations. All prospective residents take residency subject to any existing liens of the Park Owner including unpaid utility expenses.

Only one "For Sale" sign is permitted, not to exceed 12" x 18" to be displayed from a window. "For Rent" signs are not permitted. Renters shall have the same residency limitations as the Home Owner. If the Renter is seasonal (i.e. less than one year), a maximum of two (2) seasonal Renters may occupy the home.

10. **MAXIMUM HOME OWNERSHIP** - No person may own more than two (2) mobile homes in the park at the same time.

11. **VEHICLES & BOATS** - For your safety, the park's speed limit is 15 MPH. Overnight parking and storing boats or vehicles are not permitted on the street. Parking on the grass is not allowed. Vehicles illegally parked or without current license tags may be towed by

Management at vehicle owner's expense. No repair or maintenance work is permitted on cars, SUVs, boats, RV's, trucks, etc. in the park. Parking on another's lot is prohibited unless written permission is given by the Home Owner to Management.

12. **WATER** - During periods of extended vacation, the Home Owner must turn off the water supply valve to the home. Should it become necessary, because of willful or negligent acts of the Resident, for the Management to repair the water meter or the piping from the main water line to the meter module or from the main water line to the home, the costs of repair shall be charged to the Home Owner. Unpaid charges shall constitute a lien against the Home Owner's property on the lot. Homes with electric hot water heaters must have a check valve installed.

13. **SEWER** - The Home Owner must keep the sewer line flushed with water and is responsible for maintaining the sewer line from the home to the main sewer line. Any repairs, replacements, or cleaning of the sewer line between the home and the main sewer line are the liability of the Home Owner. This includes any foreign matter, roots, etc. that clog the sewer line. Unpaid charges shall constitute a lien against the Home Owner's property on the lot.

14. **GARBAGE** - Garbage collection is twice per week. The Home Owner must use a wrapper or a liner in the trash can and should dispose of grease with the garbage. Throwing or placing grass cuttings, refuse, trash, or anything into the canals is prohibited. The City of Palmetto no longer charges Home Owners for extra refuse. If a Home Owner has an appliance to be picked-up, the Home Owner must notify the City of Palmetto. Grass cuttings, tree clippings, etc. not properly cut and tied as determined by the City of Palmetto shall not be picked up by the City of Palmetto.

15. **ADDITIONS** - A written plan must be submitted in advance and approved by the Park Owner before work begins for any additions, alterations, or construction to a home or to the lot.

16. **LAUNDRY** - A laundromat is available. Laundry may be hung to dry only in the drying area behind the clubhouse. No clotheslines and no airing or drying of clothes on the lot or outside the home are permitted.

17. **ELECTRICITY** - The Home Owner is responsible for his electric bill, the electric line from the home to the FPL meter, the breaker, and any connection outside the home, including the utility shed and receptacles.

18. **AIR CONDITIONING** - Central air conditioners may be installed at the rear or at the side of the home.

19. **UTILITY SHEDS** - Utility sheds must be constructed to the roof of the carport.

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20. **SATELLITE TV** - One satellite television dish, not larger than 20" in diameter, without extensions, may be installed directly on the home; on the side of the home, or installed on the rear of the home. Outdoor antennas and aerials are not permitted.

21. **POLICY** - The Park Owner is not liable for accident or personal injury to any person or property through the use of any park facility. Home Owners and their invitees use park facilities at their own risk.

22. **MISCELLANEOUS** - Fences and gates are not permitted on any lot or around any home. No soliciting or peddling is allowed. Mobile home residents and their invitees may not use the swimming pool in Palm Bay Mobile Home Park.

23. **MAILING ADDRESS** - Mail should be addressed as follows: Your Name, 900 - 9th Avenue East, Lot #__, Palmetto, Florida, 34221. Always use your lot number, and remember to renew your forwarding address each year.

24. **PARK RULE CHANGES** - Park Rules may be changed or new ones added with 90 days written notice to each homeowner, and the board of directors of the homeowners association, if one has been formed.

25. **NOTICES** - The persons authorized to receive notices are:

As to Management:

The Park Manager
900 - 9th Avenue East
Palmetto, Florida 34221.

As to Owner:

Colonial Mobile Manor Limited LLLP
900 - 9th Avenue East
Palmetto, Florida 34221.

COLONIAL MANOR MHC HOLDINGS, LLC

d/b/a COLONIAL MANOR

900 9TH Avenue East

Palmetto, FL 34221

941-722-3191

DATE:

February 17, 2023

TO:

GREGORY DOUGLAS BURKETT AND ANY UNKNOWN TENANT(s)

Residing at 900 9th Avenue East, Lot 214, Palmetto, FL 34221

ADDRESS:

900 9th Avenue East, Lot 214

Palmetto, FL 34221

CMRR:

#7015-1730-0000-4535-9523 AND BY POSTING

GREGORY DOUGLAS BURKETT

ADDITIONAL 14470 Harlee Road

ADDRESS Palmetto, FL 34221

CMRR:

#7015-1730-0000-4535-9530

RE:

NOTICE OF TERMINATION OF LEASE

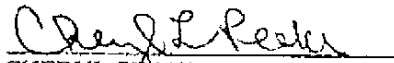
YOU ARE NOTIFIED THAT PURSUANT TO FLORIDA STATUTE §723.061 YOUR RIGHT TO RESIDE IN THE PREMISES IDENTIFIED AS 900 9th AVENUE EAST, LOT #214, MANATEE COUNTY, PALMETTO, FLORIDA 34221 IS TERMINATED EFFECTIVE MARCH 23, 2023. THIS NOTICE IS A RESULT OF FAILURE TO COMPLY WITH RULE 2 OF THE RULES AND REGULATIONS OF COLONIAL MANOR BY ENGAGING IN CONDUCT WHICH AFFECTS THE QUIET ENJOYMENT OF THE PARK AND ITS RESIDENTS. IF YOU REMAIN IN THE PREMISES BEYOND THIS DATE, YOU WILL BE CONSIDERED A TENANT AT SUFFERANCE AND AN ACTION FOR POSSESSION OF THE PREMISES WILL BE PURSUED.

COLONIAL MANOR MHC HOLDINGS, LLC

900 9th AVENUE EAST

PALMETTO, FLORIDA 34221

LANDLORD



CHERYL PEAKE

Additional service by posting a copy at residence

By:


Cheryl Peake, Community Manager
COLONIAL MANOR MHC HOLDINGS, LLC

2-17-23
Date of Posting

EXHIBIT

C

7015 1730 0000 4535 9523

U.S. Postal Service
CERTIFIED MAIL® RECEIPT
Domestic Mail Only

For delivery information, visit our Website at www.usps.com®.

OFFICIAL USE

Certified Mail Fee \$	Postmark Here
Extra Services & Fees (check box, add fee as appropriate)	
☐ Return Receipt (hardcopy) \$	
☐ Return Receipt (electronic) \$	
☐ Certified Mail Restricted Delivery \$	
☐ Adult Signature Required \$	
☐ Adult Signature Restricted Delivery \$	
Postage \$	
Total Postage and Fees \$	
Sent To <u>Gregory Douglas Burkett</u> Street and Apt. No. or P.O. Box No. <u>14170 Hailee Rd Lot 214</u> City, State, ZIP+4® <u>Palmetto FL 34221</u>	

PS Form 3800, April 2015 PSN 7530-02-000-9047 See Reverse for Instructions

7015 1730 0000 4535 9530

U.S. Postal Service™
CERTIFIED MAIL® RECEIPT
Domestic Mail Only

For delivery information, visit our Website at www.usps.com®.

OFFICIAL USE

Certified Mail Fee \$	Postmark Here
Extra Services & Fees (check box, add fee as appropriate)	
☐ Return Receipt (hardcopy) \$	
☐ Return Receipt (electronic) \$	
☐ Certified Mail Restricted Delivery \$	
☐ Adult Signature Required \$	
☐ Adult Signature Restricted Delivery \$	
Postage \$	
Total Postage and Fees \$	
Sent To <u>Gregory Douglas Burkett</u> Street and Apt. No. or P.O. Box No. <u>14170 Hailee Rd Legal Mail</u> City, State, ZIP+4® <u>Palmetto FL 34221</u>	

PS Form 3800, April 2015 PSN 7530-02-000-9047 See Reverse for Instructions

SENDER: COMPLETE THIS SECTION	COMPLETE THIS SECTION ON DELIVERY
■ Complete items 1, 2, and 3. ■ Print your name and address on the reverse so that we can return the card to you. ■ Attach this card to the back of the mailpiece, or on the front if space permits.	A. Signature <u>[Signature]</u> ☒ Agent ☐ Addressee
1. Article Addressed to: <u>Gregory Douglas Burkett</u> <u>14170 Hailee Road Legal Mail</u> <u>Palmetto, FL 34221</u>	B. Received by (Printed Name) <u>[Signature]</u> C. Date of Delivery
2. Article Number (Transfer from service label) <u>7015 1730 0000 4535 9530</u>	D. Is delivery address different from item 1? ☐ Yes ☒ No If YES, enter delivery address below: <u>14170 Hailee Rd</u> <u>Palmetto, FL</u>
3. Service Type ☐ Adult Signature ☐ Adult Signature Restricted Delivery ☐ Certified Mail® ☒ Certified Mail Restricted Delivery ☐ Collect on Delivery ☐ Collect on Delivery Restricted Delivery ☐ Insured Mail ☐ Insured Mail Restricted Delivery (over \$500)	☐ Priority Mail Express® ☐ Registered Mail™ ☐ Registered Mail Restricted Delivery ☐ Signature Confirmation™ ☐ Signature Confirmation Restricted Delivery <u>XRR</u>

PS Form 3811, July 2020 PSN 7530-02-000-9053 Domestic Return Receipt